

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Civil Appellate Jurisdiction)**

First Appeal No. 139 of 1991

In the matter of:

Sudhir Kumar Majumder and another
... Appellants

-Versus-

Bicharan Majumder and others
... Respondents

Mr. Shasti Sarker, Advocate
... For the appellants

Mr. Purnindu Bikash Das with
Mr. Binoy Krishna Podder, Advocate
... For the respondent no. 2(b)

**Heard on 05.09.2024 24.10.2024 30.10.2024
and Judgment on 30.10.2024**

Present:

Mr. Justice Md. Mozibur Rahman Miah
And
Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J.

At the instance of the plaintiff nos. 1 and 2 namely, Shudhir Kumar Majumder and Sukhamoy Majumder both sons of Gonash Chandra Majumder who are the plaintiffs in Title Suit No. 2 of 1984, this appeal is directed against the judgment and decree dated 24.03.1984 passed by the learned District Judge, Bagerhat in the said Suit dismissing the same.

The salient facts leading to preferring this appeal are:

One, Mukunda Bihari Majumder son of Gonash Chandra Majumder originally filed a Miscellaneous Case bearing no. 39 of 1971 in the court of the then 2nd Munsif, Bagerhat for granting him probate as well as letter

of administration of the property left by the testator, Shistidhor Majumder contending *inter alia* that, Shistidhor Majumder died on 25th of Ashin 1372 BS. Before his demise, he executed a will in his favour and thus he filed the said Miscellaneous Case to bequeath the property in his favour as his nephew left by the testator. It has further been stated that, the testator, Shistidhor Majumder had no issue and after the demise of Mukunda Behari Majumder his 3 sons namely, Shudhir Kumar Majumder, Shukhomoy Majumder and Subodh Mojumder were substituted in his plaint. Since the opposite parties namely Bicharon Majumder, Kumud Ranjon Majumder, both sons of Rajendra Nath Majumder that is also, two nephews of the testator, and his full brother, Gonash Chandra Majumder entered appearance in the said Miscellaneous Case and raised objection, the learned Munsif then returned the petition to the petitioner of the said Miscellaneous case for presenting it to a proper court. Then the petitioners who are the heirs of Sree Mukunda Behari Majumder then filed a suit being Title Suit No. 09 of 1974 in the court of District judge, Khulna for granting probate. Subsequently, after creation of new District in Bagerhat the said case was then transferred to the court of District Judge and District delegate, Bagerhat, and renumbered as instant Title Suit No. 2 of 1984. The suit was however contested by the defendant no. 2 that is, Kumud Ranjan Majumder son of Rajandranath Majumder and defendant no. 3(ka), Chunilal Majumder on the demise of Gonesh Chandra Majumder who was originally made as defendant no. 3. Those two defendants then seriously opposed the contention taken in the case stating *inter alia* that, Shistidhor Majumder, the testator did never execute any will and the same was antedated, fabricated and forged which was

manufactured by Mukunda Behari Majumder, the predecessor of the petitioners in collusion with the scribe. It has further been stated by the said defendants that Shistidhor Majumder had no sound disposing mind for more than 2 years before his death and Mukunda Behari Majumder (predecessor of the petitioners) by taking advantage of his residing in the *varanda* (backyard) of Shistidhor Majumder took his left thumb impression (LTI) in the blank paper which was subsequently made as well. It is also alleged that, the testator, Shistidhor Majumder did not nominate Mukunda Behari Majumder as any profounder /executor of the will rather Shistidhor Majumder had distributed his entire properties among his successors before his death and as per the said arrangement, all the defendants got their respective share of the property where they have been enjoying possession.

In view of the said pleadings, the learned District Judge framed as many as 3 different issues and in support of the case the plaintiffs examined 2 witnesses while the defendants examined 3 witnesses in support of their respective case. The learned District Judge after taking into consideration of the evidence and materials on record however dismissed the suit by impugned judgment and decree dated 24.03.1987 holding that, the plaintiffs have miserably failed to prove the assertion so made in the plaint. It is at that stage the plaintiffs as appellants preferred this appeal.

Mr. Shasti Sarker, the learned counsel appearing for the appellants upon taking us to the impugned judgment and decree and the relevant documents appeared in the paper book at the very outset submits that, in spite of proving the case by the plaintiffs to the effect that the testator,

Shistidhor Majumder had put his LTI on the will with his full knowledge and free mind, yet the learned District Judge erred in law in not believing the execution of will and therefore the impugned judgment and decree of dismissal cannot be sustained in law and thus the appeal is liable to be allowed.

The learned counsel also contends that, though it is the case of the defendants that taking advantage of residing at the residence of the testator, Mukunda took his(testator's) LTI on the will but that very allegation cannot be proved by the defendants by any evidence leaving the said allegation totally false and untrue.

The learned counsel next contends that, since in the will there has been no description that at the time of executing the will, the testator, Shistidhor Majumder was sick or paralyzed as alleged by the defendants so it alternatively proves that having in sound mind, the testator Sreedhor Majumder executed the will in favour of the predecessor of the plaintiffs and therefore there has been no doubt that the will was legally executed by the testator. The learned counsel further submits that, since at the fag end of the will the scribe as well as 3 attesting witnesses put their respective signature, so the obligation set out in section 63 of the Succession Act 1925, has clearly been complied with having no reason to create any doubt about the genuineness of the will but the learned District Judge has failed to comprehend so.

The learned counsel by referring to the provision of section 68 of the Evidence Act in particular, the proviso thereof also contends that, though there has been mandatory provision to produce at least one attesting witness before the court to prove a will if the execution of a will

is denied but in the instant cases since the defendants did not raise any objection with regard to putting LTI on the will so for that obvious reason the provision of section 68 will not be applicable for the plaintiffs-appellants in disproving the genuineness of the will.

The learned counsel by referring to a decision reported in 5 BLC (AD) (2000) 76 also contends that, since the will is a 30 years old document so there has been no reason to prove its genuineness since it had been produced from the proper custody so there has been no reason to raise any question about the genuineness of the will and the said decision is squarely applicable in the facts and circumstances of the instant case. The learned counsel by referring to another decision reported in PLD (1961) 96 also contends that, even if any document is not exhibited but kept on record, the said document will be treated as evidence. In that regard the learned counsel contends that, though in the opinion furnished by the hand writing expert, he found the LTI so put on the will to be similar with the LTI he put on other documents but mere not examining the hand writing expert will not invalidate the execution of will. In support of his submission the learned counsel then placed his reliance in another decision reported in 36 DLR (AD) 156 and submits that, similar facts have been discussed in that cited decision where their Lordships opined that if the wife of a testator even remains alive at the time of executing will and the will is not executed in her favour yet no question can be raised as regards to the genuineness of the will and though similar point has been raised by the defendants here but given the above decision their allegation hold no water in spite of the fact that in the said cited decision all the attesting witnesses as well as the scribe proved the

correctness of the will by appearing themselves in the court unlike the instant case, and therefore the said decision is also applicable in the facts and circumstances of the case in hand as well .

The learned counsel also cited a decision reported in 1983 BLD (AD) 349 where a *ratio* has been settled that, if a testator is found to be in sound disposing mind then delay in filing a case for probate will not so fatal and submits that, since in the instant case, the plaintiffs-appellants have been able to prove that, at the time of executing the will, the testator was in sound mind and he had the testamentary capacity to make a will so that very decision is also applicable in the facts and circumstances of the instant case. At this, when we pose a question to the learned counsel for the appellants with regard to the exact date of executing the will, which is being confused for making suggestion to the DW 1 and DW 3 vis-a-vis the observation made by the learned District Judge while dismissing the suit, finding that the will was executed on 28th Chaitra, 1374 BS instead of 28th Jaysta, 1374 BS, as has been written in the will appeared in the paper book, the learned counsel then contends that, since in the will a clear date of execution has been mentioned as 28th Jaista, 1374 BS and PW 1 and PW 2 in their respective testimony also asserted that date, so there remains no confusion with regard to the execution. With all these submissions, the learned counsel finally prays for allowing the appeal by setting aside the impugned judgment and decree.

By contrast, Mr. Purnindu Bikash Das, the learned counsel appearing for the respondent no. 2(b) namely, Prosinjit Mojumder very robustly opposes the contention so taken by the learned counsel for the appellants and submits that, in finding a will genuine, one of the vital

aspects is to see whether the testator had been in a sound disposing mind and got testamentary capacity to make a will but from the recital of the will as well as the case of the defendants, it manifests that at the time of making the will the testator was not in a sound mind so whether the testator put his signature or not on the will it is not that material point in granting probate of a will. In that regard, the learned counsel takes us through the will (exhibited as 'x') and submits that, if carefully reads two stanzas of the will it will turn out that at the time of executing the will the testator who was aged 90-91 years at that time, had been suffering from multiple ailments and was anticipating his death and narrating those apprehension he made the will. At that, when we pose a question to the learned counsel for the said respondent with reference to the last sentence of the said will where he also asserted that, he put his signature without any interference from any quarter and then penned the will in sound mind, the learned counsel then retorted that, it is just a customary to insert such statement while making a will which was not true expression of mind. In that aspect, the learned counsel rather placed his entire reliance in the decision (so relied by the appellants) reported in 36 DLR (AD) 156 and submits that, though in that decision the Appellate Division allowed the probate of a will but in the said decision it has also been settled that, at the time of making a will if the testator is not found to be in sound dispensing mind and testamentary capacity then no probate can be allowed. However, to substantiate the said submission, the learned counsel then takes us through paragraph no. 6 to the written statement where it has been asserted that the testator was 90/95 years old and had been bed ridden with multiple diseases when his wife, Varoty Dasi had to nurture him

(testator) and at a certain point of time, he became mentally disabled and such disabilities persisted till his death when DW 1 in his chief clearly stated that:

“ সৃষ্টিধর মৃত্যুর আগে পক্ষাঘাতে আক্রান্ত হয় । শেষে দিতে স্মৃতিজ্ঞান গুণ্য হয় । মাঝে মাঝে উন্মাদ হয়ে যেতো । প্রশাব পায়খানা, গোবর খে সৃষ্টিধর মৃত্যুর তার স্ত্রী ভারতী আমাদের মাধ্যমে দখল করিতেন।” (page 22 of the paper book)

In the same vein DW 3 who is the defendant no. 3 ‘ka’ named, Chunilal Majumder in his examination-in-chief also stated that,

“সৃষ্টিধর দুই বৎসর পক্ষাঘাতে প রছিল দুই বছর । অজ্ঞান ছিল মস্তিষ্ক বিকৃতি হয়েছিল ছিল । ১৩৭৩ সা প্রথম পক্ষাঘাতে আক্রান্ত ও জন্মাষ্টামি পূজা উৎসব চলাকা শ্রং করত তার স্ত্রী ভারতী দাসী অন্তর্গত ক্রীয়া ও শ্রদ্ধাদি ভারতী দাসী করেছিল ।” (page 31 of the paper book)

The learned counsel then contends that, with those assertion made by the DW 1 and DW 3, it manifestly proves that at the time of executing the alleged will in favour the profounder, the testator was not in a sound dispensing mind and thus the decision so relied by the learned counsel for the appellants rather supports the case of the respondents. Insofar as regards to the assertion of the appellants that the testator put his signature in presence of the attesting witnesses, the learned counsel then refers to the provision of section 63 of the Succession Act 1925 where it has clearly been propounded that at least one witness should remain present and to witness the signature or thump impression of the testator on the will to conceive the mental state of the testator and since the will is an unregistered one so the attesting witness must produce himself in the court to prove the genuineness of the will but in the instant case,

admittedly out of 3 attesting witnesses none of them turned up to prove the execution of will and the learned District Judge has rightly passed the impugned judgment and order dismissing the suit basing on material evidence on record which is justified.

The learned counsel by referring to the provision of section 59 of the Succession Act 1925 also contends that, that very provision also speaks of having sound mind of a testator because a testator should bear a sound mind to fathom what consequence will follow upon making a will because it is going to be very important decision of a testator in his/ her life as by the will, he is going to transfer his entire property in favour of a person or persons depriving his/ her legal heirs. Insofar far as regards to the submission of the learned counsel for the appellants that, since the thumb impression of the testator has been proved by a hand writing expert by comparing his LTI put on other documents so there has been no necessity to prove the genuineness of his thumb impression by calling the expert as witness before the court but that assertion does not stand as per section 67 and 68 of the Evidence Act, the learned counsel for the respondents asserts.

The learned counsel wrapped up his submission contending that, when a testator makes a will he has to express the well being of a person or persons on whose favour he/she is executing a will but in the recital of the will nothing short of this to that effect has been found rather, it has been stated that, having satisfied with hospitable treatment and affection of the executor/ propounder he (the testator) made the will but that alleged assertion does not fulfill the true objective of making a will. With these submissions the learned counsel finally prays for dismissing the appeal.

Be that as it may, we have considered the submission so advanced by the learned counsel for the appellants and that of the respondent no. 2(b) and also very meticulously gone through the documents so appeared in the paper book and those in the LCR including the original **will** which is the ‘cornerstone’ in the suit. At the first instance, we would like dwell on the point of validity of making the will. On the face of the will, we find that, at the outset it has been alleged by the testator that, since he turned 90/91 year and had been suffering from various disseasses and waiting for death, so at that juncture of life, he desired to make a will. So if a person is found to have been suffering from various disseasses so obviously that person cannot be said to have a sound disposing mind let alone testamentary capacity to execute a will. Furthermore, the defendants in their written statement has also asserted that, 2 years before the demise of the testator, he became paralyzed and started leading his life with absolute care and nursing by his wife. The said assertion has clearly been substantiated by the defendant witness no. 1 and defendant witness no. 3 in their respective evidences. Then again, with that regard, the plaintiff witness no. 1 was given suggestion by the defendants asserting that at the time of executing will, the testator was not in sound mind. Curiously enough, even the plaintiff while cross examining DW 3 rather asserted the said state of mind of the testator by putting a question against which the reply of the DW-3 was as under

“ স্টিথর মৃত্যুর পর দুই বৎসর আগে হতেই অসুস্থ ছিলেন । এই দুই

বৎসর তার কোন জ্ঞান ছিলনা এবং উন্মাদ হয়ে গিয়েছিলেন অনুমান ৯০/৯৫ বৎসর

বয়ে

” (page33 of paper book)

So by cross examining the DW 3, the plaintiffs rather got it asserted that the testator was not in sound disposing mind not to mention his testamentary capacity to make the will. So, no other proof is required to be made to comprehend the mental state of the testator at the time of making the will. Now we would like to make discussion with a very vital point as regards to the date of execution of the will upon taking the original will from the safe custody. On the face of the will we find that, that very will was executed on 28th of Chaitra, 1374 BS corresponding to 11.04.1968 AD but both the PW 1 and PW 2 in their respective testimony vociferously asserted that, the will was executed on 28th of Jaishya, 1374 BS but facts remains, in the entire plaint of the suit not a single sentence has been inserted with regard to the date of execution of the will which cast a serious doubt about the correctness of the execution of the will. In the cross examination PW-2 who stood scribe of the will also stated as under:

“বাড়ির অন্যান্য অংশীদারকে সই কর

মুকুন্দকে ও সৃষ্টিধরকে সাক্ষী

ডেকে

আনা হয়েছিল। তার পর বলে লেখার সময় উপস্থিত ছিল।”

So on such testimony it is also clear that, the provision of section 63 of the Succession Act has not been complied with because it the mandatory provision that at the time of making a will at least one attesting witness will have to remain present to assume the mental position of a testator but the aforesaid testimony of the PW 2 creates a serious doubt with regard to the presence of any attesting witnesses at the time of executing the will. In that aspect the learned counsel for the appellants placed his reliance on the provision of section 90 of the Evidence Act but

that very provision will never be appealable in the instant case as the execution of will has not been proved by the plaintiffs- appellants as discussed above as in a probate case the will is the most vital document to adjudicate the matter. Also, under the provision of section 68 of the Evidence Act, it is the bounden duty of the attesting witnesses to prove the execution of a will by adducing himself / themselves before the court but in the instant case, it is admitted position that, none of the 3 attesting witnesses appeared before the court though the learned counsel for the appellants submits that, the proviso to 68 of the Evidence Act does not necessitate any of the attesting witness to appear before the court to prove the execution of a will since putting LTI by the testator is not denied by the defendants. But we are not at one with the said submission because the respondents though did not raise any objection with regard to putting the thumb impression of the testator on the will, but they vehemently disputed the mental state as well as the testamentary capacity of the testator at the time of executing the will and for that obvious reason, the provision of section 68 will surely be adhered to in the facts and circumstances of the instant case and thus at least one attesting witness out of 3 attesting witnesses should have appeared before the court to prove the execution of the will. In regard to two decisions of our Appellate Division cited by the learned counsel for the appellants where probate was given but the facts narrated in those cited cases are totally distinguishable with the facts and circumstances of instant case. Because, in the instant case admittedly compliance of provision of section 63 and section 59 of the Succession Act has not been proved by the plaintiffs-appellants. Though in the cited decisions, the attesting witnesses as well as the hand writing expert were

available themselves before the court to prove the execution of the will where in regard to date of execution of the will, there had been no dispute.

On top of that we are taken aback to find how the date of execution of the will can be changed in the paper book though it is supposed to be typed in the paper book in line with the original will and the learned counsel for the appellants cannot evade the responsibility of such malpractice even if he in his submission kept on asserting the execution on 28 Jaishy, 1374 BS. All in all, so we are of the view that, the learned District Judge has rightly dismissed the case which does not call for any interference by this court.

In the result, the appeal is dismissed however without any order as to costs.

Before parting, we are of the view that, since the original copy of the will has been kept in the “safe custody” of this court by office order dated 25.02.2016 and since the will is the most vital document, so the office is directed to keep the will in “safe custody” again and send it with the lower court records to the learned District Judge, Bagerhat.

Let a copy of this judgment and decree along with the lower court records as aforesaid, be communicated to the court concerned forthwith.

Md. Bashir Ullah, J.

I agree.